

23SMCV01044 23SMCV01044

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-01

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Case Number: 23SMCV01044 Hearing Date: September 1, 2026 Dept: P

Tentative

Ruling

Jennifer

Flynn Adams, et al. v. The Bessemer Trust Co., et al., Case No. 23SMCV01044

Plaintiffs'

Motion to Consolidate Case No. 23SMCV01044 and Case No. 26SMUD00317

Hearing

Date: September 1, 2026

Motion

to Consolidate

On July

16, 2026, the Court related 26SMUD00317 ("UD action") to 23SMCV01044 ("Civil Action"), with the Civil Action as the lead case. This matter was originally assigned to Department 207 at the Beverly Hills Courthouse. On July 30, 2026, it was re-assigned to Department P at the Santa Monica Courthouse.

On August

7, 2026, Plaintiff moved to consolidate the UD Action and the Civil Action for all purposes. On August 18, 2026, Defendant Tara Broida filed opposition. On August 19, 2026, the other Defendants filed opposition. On August 24, 2026, Plaintiffs filed replies to both oppositions.

Consolidation

of a UD action and a civil action involving complex title issues would improperly compromise the due process rights of those involved in the complex title dispute by forcing litigation within the summary procedures of a UD action. (Martin-Bragg v. Moore (2013) 219 Cal.App.4th 367, 391-393) The Court must weigh the rights and needs of the party asserting the complex title dispute against the UD plaintiff's right to a prompt resolution of the UD matter and arrive at a solution that would best preserve both parties' rights. Id. at 393 ("With or without consolidation of the cases, trial courts have available options to address plaintiffs' legitimate rights and need for protection from unjustified delay of the unlawful detainer proceeding, while still affording reasonable opportunities for discovery and to prepare for trial of complex issues relating to the property's title. The trial court has discretion, for example, to sever and separately try the issue of title to the property, while assuring the availability of fair compensation to the plaintiff for any delay in acquiring possession. (Code Civ. Proc., § 1170.5, subd. (c) [court may order defendant to pay contract rent into court during delay of trial for defendant's benefit].")

Defendants'

interests in resolving the civil issues after full discovery and an opportunity to properly prepare their case and Grozdich's interest in obtaining a prompt resolution of the UD action will be best preserved by denying the motion to consolidate.

Plaintiffs

argue that the unlawful detainer case raises complicated possession and ownership disputes and habitability concerns. Though there are common issues, plaintiffs do not claim title to the property in either proceeding. There are other procedures available to Plaintiffs to ensure that issues better addressed in the civil action are not improperly addressed in the UD proceedings that do not destroy Grozdich's right to a prompt resolution of his UD action. Plaintiffs also raise issues posed by the civil discovery protective order and stays on discovery in the civil action. These issues would only be exacerbated if the actions were consolidated. As it stands, discovery in the separate actions are separate matters.

Plaintiffs

also ask the Court to order "coordinated case management," but do not explain what that means in practice. The parties should meet and confer to discuss and resolve such issues. If necessary, they can then move the Court for specific

orders to resolve discovery disputes.

Plaintiffs'

Motion to Consolidate is DENIED.